



Income Tax Department

Ministry of Finance, Government of India

F.—Income from other sources

Income from other sources.

92. (1) Income of every kind which is not to be excluded from the total income under this Act, shall be chargeable to income-tax under the head "Income from other sources", if it is not chargeable to income-tax under any of the heads specified in section 13(a) to (d).

(2) In particular, and without prejudice to the generality of the provisions of sub-section (1), the following incomes shall be chargeable to income-tax under the head "Income from other sources":—

- (a) any dividend;
- (b) any winning from lotteries, crossword puzzles, races including horse races, card games and other games of any sort or from gambling or betting of any form or nature;
- (c) any sum received by the assessee from employees as contributions to any provident fund, superannuation fund, any fund set up under the Employees' State Insurance Act, 1948 (34 of 1948), or any other fund for the welfare of such employees, if the income is not chargeable to income-tax under the head "Profits and gains of business or profession";
- (d) any sum received under a Keyman insurance policy, as defined in Schedule II (Note 1) including the bonus allocated on such policy, if such income is not chargeable to income-tax under the head "Profits and gains of business or profession" or under the head "Salaries";
- (e) any income by way of interest on securities, if the income is not chargeable to income-tax under the head "Profits and gains of business or profession";
- (f) any income from machinery, plant or furniture belonging to the assessee and let on hire, if the income is not chargeable to income-tax under the head "Profits and gains of business or profession";
- (g) any income from letting on hire of machinery, plant or furniture, belonging to the assessee and also buildings, where the letting of the buildings is inseparable from the letting of such machinery, plant or furniture, if the income is not chargeable to income-tax under the head "Profits and gains of business or profession";
- (h) any sum of money received as an advance or otherwise during negotiations for the transfer of a capital asset, if—
 - (i) such sum is forfeited; and
 - (ii) the negotiations do not result in transfer of such capital asset;
- (i) any income by way of interest received on compensation or on enhanced compensation referred to in section 278(1);
- (j) any compensation or other payment, due to or received by any person, by whatever name called, in connection with the termination of his employment, or the modification of its terms and conditions;
- (k) any specified sum received by a unit holder from a business trust during the tax year with respect to a unit held by him at any time during such tax year, the computation of which shall be—

specified sum = $A - B - C$ (which shall be deemed to be zero, if the sum of B and C is greater than A), where—

A = aggregate of the sum distributed by the business trust with respect to such unit, during the tax year or during any earlier tax year or years, to such unit holder, who holds such unit on the date of distribution of sum or to any other unit holder who held such unit at any time prior to the date of such distribution, which is—

 - (a) not in the nature of income referred to in Schedule V (Table: Sl. No. 3 or 4); and
 - (b) not chargeable to tax under section 223(2);

B = amount at which such unit was issued by the business trust; and

C = amount charged to tax under this clause in any earlier tax year;
- (l) where any sum, including bonus allocated, is received, during a tax year, under a life insurance policy, other than—
 - (a) sums received under a unit linked insurance policy; or
 - (b) income referred to in clause (d),

and such sum is not to be excluded from the total income of that tax year under Schedule II (Table: Sl. No. 2), the sum exceeding the aggregate of the premium paid, during the term of such life insurance policy, and not claimed as a deduction under this Act, computed in such manner, as may be prescribed;
- (m) where any person receives in any tax year, from any person or persons—
 - (i) any sum of money without consideration, the total of which exceeds Rs. 50000, the whole of such sum;
 - (ii) any immovable property—
 - (A) without consideration, the stamp duty value of which exceeds Rs. 50000, the stamp duty value of such property;
 - (B) for a consideration, the stamp duty value of such property that exceeds such consideration, if this excess amount is more than the higher of the following amounts:—
 - (I) Rs. 50000; or
 - (II) 10% of the consideration;
 - (iii) any property, other than immovable property,—
 - (A) without consideration, the aggregate fair market value of which exceeds Rs. 50000, the whole of the aggregate fair market value of such property;
 - (B) for a consideration which is less than the aggregate fair market value of the property by an amount exceeding Rs. 50000, the aggregate fair market value of such property as exceeds such consideration.

(3) The provisions of sub-section (2)(m) shall not apply to any sum of money or any property received—

- (a) from any relative; or
- (b) on the occasion of marriage of the individual; or
- (c) under a will or by way of inheritance; or
- (d) in contemplation of death of the payer or donor; or
- (e) from any local authority as defined in Schedule III (Note 6); or
- (f) from or by any registered non-profit organisation as defined in section 355(g), except when received by any person referred to in section 355(h); or
- (g) by way of a transaction not regarded as transfer under section 70(1)(a), (c), (d), (e), (f), (g), (i), (j), (k), (l), (n), (o), (t), (u), (v) or (w); or
- (h) from an individual by a trust created or established solely for the benefit of relative of the individual; or
- (i) from such class of persons and subject to such conditions, as may be prescribed.

(4) For the purposes of sub-section (2)(m)(ii),—



Income Tax Department

Ministry of Finance, Government of India

- (a) if the date of agreement fixing the amount of consideration for the transfer of immovable property and the date of registration are not the same, the stamp duty value on the date of agreement shall apply, provided the consideration, in whole or in part, has been paid in specified banking or online mode as defined in section 66(32) on or before the date of agreement for transfer of such immovable property;
- (b) if the stamp duty value of immovable property is disputed by the assessee on the grounds mentioned in section 78(2), the Assessing Officer may refer the valuation of such property to a Valuation Officer, and the provisions of sections 78(2) and 288(1) (Table: Sl. No. 8) shall, as far as may be, apply to the stamp duty value of such property as they apply for valuation of capital asset under those sections.
- (5) For the purposes of this section,—
- (a) "assessable" shall have the meaning assigned to it in section 2(105);
- (b) "card game and other game of any sort" includes any game show, an entertainment programme on television or electronic mode, where people compete to win prizes or any similar game;
- (c) "fair market value" of a property, other than an immovable property, means the value determined by such method as may be prescribed;
- (d) "jewellery" shall have the meaning assigned to it in section 2(22);
- (e) "lottery" includes winnings from prizes awarded by draw of lots, by chance, or in any other manner under any scheme or arrangement by whatever named called;
- (f) "property" means the following capital asset of the assessee:—
- (i) immovable property being land or building or both;
 - (ii) shares and securities;
 - (iii) jewellery;
 - (iv) archaeological collections;
 - (v) drawings;
 - (vi) paintings;
 - (vii) sculptures;
 - (viii) any work of art;
 - (ix) bullion; or
 - (x) virtual digital asset;
- (g) "relative" means—
- (i) in case of an individual—
 - (A) spouse;
 - (B) brother or sister;
 - (C) brother or sister of the spouse;
 - (D) brother or sister of either of the parents;
 - (E) any lineal ascendant (maternal as well as paternal) or descendant;
 - (F) any lineal ascendant (maternal as well as paternal) or descendant of the spouse;
 - (G) spouse of the person referred to in items (B) to (F); and
 - (ii) for a Hindu undivided family, any member thereof;
- (h) "unit linked insurance policy" shall have the meaning assigned to it in Schedule II (Note 1).

